

Amendment No. 1 to SB1493

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 1493

House Bill No. 1455*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 39, Chapter 13, Part 2, is amended by adding the following as a new section:

(a) It is an offense for a person or entity to knowingly operate an artificial intelligence system or artificial intelligence chatbot to:

(1) Advise, encourage, or otherwise support the act of suicide by inciting, persuading, or aiding a person to commit or attempt to commit suicide within an imminent period of time after the person has communicated an intent to commit suicide to the artificial intelligence system;

(2) Encourage or otherwise support the act of criminal homicide, as described in § 39-13-201;

(3) Act as, or provide information as if, the artificial intelligence is a licensed mental health or healthcare professional; or

(4) Encourage or otherwise request the individual to provide the individual's financial account information or other sensitive information to the artificial intelligence.

(b) A violation of subsection (a) is a Class A felony.

(c) As used in this section, "artificial intelligence" and "artificial intelligence chatbot" mean the same as defined in § 47-18-5901.

SECTION 2. Tennessee Code Annotated, Title 47, Chapter 18, is amended by adding the following as a new part:

47-18-5901. Part definitions.

As used in this part:

(1) "Artificial intelligence" or "A.I.":

(A) Means a machine-based system that:

(i) Can, for a given set of human-defined objectives, make predictions, recommendations, or decisions; influence real or virtual environments without significant human oversight; or that can learn from experience in an automated manner and improve such performance when exposed to data sets; or

(ii) Is developed in any context, including software or physical hardware, and solves tasks requiring human-like perception, cognition, planning, learning, communication, or physical action; and

(B) Includes an artificial intelligence chatbot;

(2) "Artificial intelligence chatbot" or "chatbot":

(A) Means artificial intelligence with a natural language interface that provides adaptive, human-like responses to user inputs and is capable of meeting a user's social needs, including by exhibiting anthropomorphic features and being able to sustain a relationship across multiple interactions; and

(B) Does not include:

(i) A bot that is used only for customer service, a financial institution's or business's operational purposes, productivity and analysis related to source information, internal research, or technical assistance;

(ii) A bot that is a feature of a video game and is limited to replies related to the video game that cannot discuss topics

related to mental health, self-harm, or sexually explicit content, or maintain a dialogue on other topics unrelated to the video game; or

(iii) A stand-alone consumer electronic device that functions as a speaker and voice command interface, acts as a voice-activated virtual assistant, and does not sustain a relationship across multiple interactions or generate outputs that are likely to elicit emotional responses in the user;

(3) "Financial institution" means a bank, trust company, savings institution, or credit union chartered and supervised under state or federal law;

(4) "Person" means an individual, for-profit corporation, nonprofit corporation, or other business entity;

(5) "Sexually explicit conduct" means the same as defined in § 39-13-301;

(6) "User" means a person who interacts with artificial intelligence or an artificial intelligence chatbot; and

(7) "Video game" means a game played on an electronic amusement device that utilizes a computer, microprocessor, or similar electronic circuitry and its own monitor, or is designed to be used with a television set or a computer monitor, that interacts with the user of the device.

47-18-5902.

(a) Any artificial intelligence or artificial intelligence chatbot interaction occurring in this state must include a recurring and prominent disclosure clearly indicating that the user is interacting with an artificial intelligence system or chatbot.

(b) The disclosure required by subsection (a):

(1) May be a watermark, recurring text or pop-up notice, or other disclosure that is clearly visible and noticeable by a user; and

(2) Must be visible at the beginning of each session and at recurring intervals of every sixty (60) minutes of continuous A.I. system or chatbot interaction.

(c) Failure to include a disclosure required by this section constitutes an unfair or deceptive act or practice and is subject to the penalties and remedies provided in part 1 of this chapter.

47-18-5903.

(a) If a person owns or operates an artificial intelligence system or artificial intelligence chatbot in this state that engages with users in a context that involves sexually explicit conduct, then the owner or operator of the artificial intelligence system or chatbot must establish safeguards and protections to prevent or terminate content interactions involving sexually explicit conduct with a user who is known to be a minor, or reasonably should be known to be a minor.

(b) A person who violates subsection (a) may be civilly liable if the person knows or reasonably should know that the person's artificial intelligence system or chatbot is engaging with a minor in content involving sexually explicit conduct.

(c) A class action lawsuit must not be brought to obtain injunctive relief and recover damages for conduct in violation of this part.

(d) The attorney general and reporter may bring an action in any court of competent jurisdiction in the name of the state, any of this state's political subdivisions or agencies, or as *parens patriae* on behalf of natural persons residing in this state for appropriate injunctive or other equitable relief, including disgorgement, and to secure monetary damages for any injuries directly or indirectly sustained by reason of any violation of this part. The attorney general and reporter is entitled to reasonable attorney fees, court costs, and expenses if the attorney general and reporter prevails in an action brought pursuant to this section.

SECTION 3. Tennessee Code Annotated, Section 47-18-104(b), is amended by adding the following as a new subdivision:

() Violating § 47-18-5902.

SECTION 4. This act takes effect January 1, 2027, the public welfare requiring it, and applies to conduct occurring on or after that date.